

Independent Contractor Agreement

Terms for subcontractors performing work for Luwah Technologies and its clients

Agreement Summary

Agreement No.	[ICA-YYYY-NN]
Contractor	[Contractor legal name]
Contractor entity type	[Individual, LLC or corporation, and state]
Contractor contact	[Email and phone]
Effective Date	[Month DD, YYYY]
Initial Work Order reference	[WO-YYYY-NN, or None at signing]
Compensation basis	[Hourly at the Work Order rate, or fixed per Work Order]

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This Independent Contractor Agreement (the "Agreement") is between Luwah Technologies LLC, a Colorado limited liability company ("Company"), and the contractor named in the Agreement Summary above ("Contractor"). Company engages Contractor to perform services for Company and, at Company's direction, for Company's clients (each a "Client").

Company owns the Client relationship and the work. Contractor works under Work Orders, controls how the work is done, and is responsible for its own taxes, tools and insurance.

1. Definitions

- 1.1 "Work Order"** means a document in substantially the form of Exhibit A, signed by both Parties, that describes the Services, Deliverables, compensation and dates for an assignment.
- 1.2 "Services"** means the work Contractor performs under a Work Order.
- 1.3 "Work Product"** means everything Contractor creates, alone or with others, in performing the Services, including code, workflows, configurations, designs, content, documentation, drafts and data.
- 1.4 "Pre-Existing IP"** means tools, code, libraries and materials Contractor created or acquired before or outside the Services, listed in Exhibit B.
- 1.5 "Confidential Information"** means non-public information of Company or of any Client that Contractor receives or learns in connection with the Services, in any form. It includes

Client identities, business data, credentials, systems, pricing, source code, Work Product and the terms of this Agreement.

2. Services

- 2.1** Contractor performs the Services described in each Work Order. Each Work Order incorporates this Agreement.
- 2.2** Contractor decides how and when to perform the Services, subject to the deadlines, deliverable specifications and security requirements in the Work Order.
- 2.3** Contractor performs the Services personally, or through the named personnel listed in the Work Order. Contractor may not subcontract or delegate any part of the Services without Company's prior written consent.
- 2.4** This Agreement is non-exclusive. Company does not promise any minimum amount of work, and Contractor may work for others, subject to Sections 6, 7 and 8.
- 2.5** Where a Client's agreement with Company imposes terms on the work, such as data handling, security, confidentiality or ownership terms, Company will state them in the Work Order and Contractor will comply with them.

3. Compensation

- 3.1** Company pays Contractor as stated in the Work Order, either hourly at the stated rate in 15-minute increments, or a fixed amount per Deliverable.
- 3.2** Contractor submits invoices monthly, or on completion of a milestone where the Work Order says so. Each invoice states the Work Order number and itemizes hours by date and task, or the Deliverables completed. Company pays approved invoices within 30 days of receipt (Net 30).
- 3.3** Company may reject hours that were not authorized by the Work Order or are not itemized. The Parties resolve any rejected item in good faith. Company pays the undisputed part on time.
- 3.4** Company reimburses expenses only with prior written approval, at cost, with receipts.
- 3.5** Contractor is responsible for all taxes on amounts paid under this Agreement. Company issues Form 1099 where the law requires. Contractor provides a completed Form W-9, or Form W-8 if applicable, before the first payment.
- 3.6** Company does not pay for work performed without a signed Work Order.

4. Independent Contractor Status

- 4.1 Contractor is an independent contractor and not an employee, partner, agent or joint venturer of Company. Contractor is not entitled to wages, overtime, benefits, workers' compensation or any other employee entitlement from Company.
- 4.2 Contractor supplies its own equipment, tools, software licenses and workspace. Company provides only the access to Company or Client systems that the Services require.
- 4.3 Contractor has no authority to bind Company or any Client, and will not represent itself as an employee or agent of either.
- 4.4 **Notice required by Colorado law. CONTRACTOR IS NOT ENTITLED TO UNEMPLOYMENT INSURANCE BENEFITS UNLESS UNEMPLOYMENT COMPENSATION COVERAGE IS PROVIDED BY CONTRACTOR OR SOME OTHER ENTITY. CONTRACTOR IS OBLIGATED TO PAY FEDERAL AND STATE INCOME TAX ON ANY MONEYS PAID PURSUANT TO THIS AGREEMENT.**

5. Work Product and Intellectual Property

- 5.1 **Work made for hire.** The Parties agree that all Work Product is specially ordered or commissioned by Company and is a "work made for hire" under the United States Copyright Act, 17 U.S.C. § 101, to the fullest extent the law allows, and that Company is its author and owner.
- 5.2 **Assignment.** To the extent any Work Product does not qualify as a work made for hire, Contractor irrevocably assigns to Company, on creation, all right, title and interest in the Work Product worldwide, including all copyrights, and any patent, trademark and trade secret rights in it, together with the right to sue for past and future infringement.
- 5.3 **Moral rights.** To the extent the law allows, Contractor waives, and agrees not to assert against Company, its Clients or their successors, any moral rights in the Work Product.
- 5.4 **Further assurances.** Contractor will sign any document and take any lawful step Company reasonably requests, at Company's expense, to record or perfect Company's ownership, during and after the term.
- 5.5 **Pre-Existing IP.** Contractor keeps ownership of Pre-Existing IP. Contractor will not incorporate Pre-Existing IP into Work Product unless it is listed in Exhibit B or approved in writing in the Work Order. For any Pre-Existing IP incorporated into Work Product, Contractor grants Company and its Clients a perpetual, worldwide, non-exclusive, royalty-free, transferable and sublicensable license to use, copy, modify and distribute it as part of the Work Product.

- 5.6 Open source and third-party components.** Contractor will not incorporate open source or third-party components into Work Product without Company's prior written approval, and will identify each component and its license.
- 5.7 Flow-down to Clients.** Company may assign or license Work Product to its Clients. Contractor's assignments, waivers and licenses in this Section extend to those Clients and their successors.
- 5.8 Originality.** Contractor warrants that the Work Product is Contractor's original work, except for approved Pre-Existing IP and approved third-party components, and does not infringe or misappropriate any third party's rights. Contractor will not use any confidential information or trade secret of a former client or employer in the Services.
- 5.9 AI tools.** Contractor may use AI-assisted tools only where the Work Order permits them. Contractor will never submit Company or Client Confidential Information to an AI tool that trains on submitted data. Contractor reviews all AI-assisted output and remains responsible for the Work Product.

6. Confidentiality

- 6.1** Contractor will use Confidential Information only to perform the Services, will protect it with at least reasonable care, and will not disclose it to anyone other than personnel named in the Work Order who are bound by written obligations at least as protective as this Section.
- 6.2** Confidential Information does not include information that is or becomes public through no fault of Contractor, that Contractor already knew without a duty of confidence, or that Contractor lawfully receives from a third party without a duty of confidence. Contractor may disclose Confidential Information when the law requires, after prompt notice to Company where lawful.
- 6.3** On Company's request, or when a Work Order or this Agreement ends, Contractor will return or delete all Confidential Information and Work Product within 5 business days and confirm in writing that it has done so, except copies the law requires Contractor to keep.
- 6.4** These obligations last for 3 years after this Agreement ends. For trade secrets and credentials, they last as long as the information remains a trade secret or the credential remains active.
- 6.5 General knowledge.** Nothing in this Agreement prohibits Contractor from using the general training, knowledge, skills and experience Contractor gains through the Services, including methods and techniques of general application, provided Contractor does not

use or disclose Confidential Information in doing so. This clause grants no license under any intellectual property right.

- 6.6 Whistleblower immunity.** Under the Defend Trade Secrets Act, 18 U.S.C. § 1833(b), an individual is not liable under any federal or state trade secret law for disclosing a trade secret in confidence to a federal, state or local government official, or to an attorney, solely to report or investigate a suspected violation of law, or in a complaint or other document filed under seal in a lawsuit. Nothing in this Agreement limits that immunity or prevents any person from reporting a possible violation of law to a government agency.

7. Client Access, Credentials and Security

- 7.1** Contractor uses only the access Company or a Client grants, only for the Work Order that requires it, and never for any other purpose.
- 7.2** Contractor stores every credential in an encrypted password manager, enables multi-factor authentication where the platform offers it, never shares credentials, never stores them in email, chat or source code, and never uses a personal account to access a Client system.
- 7.3** Contractor keeps Client data only in the systems the Work Order approves, never on an unencrypted device, and keeps every device used for the Services under full-disk encryption with current operating system and security updates.
- 7.4** Contractor makes no change to a Client production system outside the scope of the Work Order or outside the approval process Company sets for that Client.
- 7.5** Contractor reports any suspected security incident, including a lost device, a leaked credential or unauthorized access, to Company within 24 hours of learning of it, and cooperates fully with Company's and the Client's response.
- 7.6** When a Work Order ends, Contractor deletes all Client credentials and Client data it holds within 5 business days and confirms in writing that it has done so.
- 7.7** Company may check Contractor's compliance with this Section on reasonable notice.

8. Client Relationships

- 8.1** Company owns the Client relationship. Contractor communicates with a Client only through the channels Company approves and only within the scope of the Work Order.
- 8.2** Contractor will not use Company's trade secrets or Confidential Information, including a Client's identity, needs, systems, pricing or contacts learned through the Services, to solicit or divert any Client. This clause protects Company's trade secrets and Confidential Information. It is not a covenant not to compete and does not stop Contractor from working for anyone using information Contractor did not obtain through the Services.

8.3 If a Client asks Contractor to work directly for it during a Work Order, Contractor will tell Company within 2 business days.

8.4 Contractor will not make any public statement that disparages Company or a Client.

9. Representations and Compliance

9.1 Contractor has the right to enter this Agreement and to grant the rights in it, and no other agreement or obligation conflicts with it.

9.2 Contractor will comply with all laws that apply to the Services and to Contractor's business, and holds every license and registration its business requires.

9.3 Contractor is legally able to work in the country where it performs the Services.

10. Term and Termination

10.1 This Agreement starts on the Effective Date and continues until either Party ends it.

10.2 Either Party may end this Agreement or a Work Order with 7 days' written notice. Company may end this Agreement or a Work Order immediately by written notice if Contractor breaches Section 5, 6, 7 or 8, or if a Client asks Company to remove Contractor from its work.

10.3 When this Agreement or a Work Order ends, Contractor delivers all Work Product completed or in progress, returns or deletes Confidential Information under Section 6.3, and deletes credentials under Section 7.6. Company pays for Services performed up to the end date, subject to Sections 3.3 and 11.

10.4 Sections 5, 6, 7, 8, 11, 12 and 14, and any other term that by its nature should survive, survive the end of this Agreement.

11. Warranty

11.1 Contractor warrants that it will perform the Services in a professional manner consistent with industry standards, and that each Deliverable will conform to the Work Order.

11.2 For 30 days after Company accepts a Deliverable, Contractor will correct any non-conformance at no charge within a reasonable time. If Contractor cannot, Company may have the work corrected elsewhere and deduct the reasonable cost from amounts owed to Contractor.

12. Indemnity and Limitation of Liability

12.1 Contractor will defend, indemnify and hold harmless Company and its Clients from any third-party claim, and the resulting losses, costs and reasonable attorneys' fees, that arises from Contractor's breach of Section 5, 6 or 7, from infringement or

misappropriation by the Work Product, from Contractor's gross negligence or willful misconduct, or from any tax, wage or employment claim by Contractor or its personnel.

- 12.2** Company's total liability arising out of this Agreement is limited to the compensation paid to Contractor under it in the 12 months before the event that gave rise to the claim. Neither Party is liable for indirect, incidental, special, consequential or punitive damages, except for Contractor's breach of Section 5, 6 or 7 and Contractor's indemnity obligations.

13. Insurance

- 13.1** Contractor is responsible for its own insurance. Where a Work Order requires professional liability or cyber liability insurance, Contractor will hold the stated coverage for the term of the Work Order and provide a certificate of insurance on request.

14. General

- 14.1 Governing law and disputes.** The law of the State of Colorado governs this Agreement. The Parties will first negotiate any dispute in good faith for 30 days, then mediate in Arapahoe County, Colorado or by video conference with a mediator they agree on, sharing the mediator's fees equally. If mediation fails, either Party may bring the dispute in the state or federal courts located in Arapahoe County, Colorado, and each Party submits to their jurisdiction. Either Party may seek an injunction in any court to protect its Confidential Information or intellectual property without first negotiating or mediating. The prevailing Party may recover its reasonable attorneys' fees and costs.
- 14.2 Notices.** Notices must be in writing and sent by email to the address in the signature block. A notice of breach or termination must also be sent by courier or certified mail to the notice address in the signature block. Email notice is effective on the next business day after sending, unless the sender receives a delivery failure. A Party may change its notice address by notice under this Section.
- 14.3 Entire agreement.** This Agreement, its Exhibits and each Work Order are the entire agreement between the Parties about their subject matter and replace all earlier proposals, discussions and agreements about it.
- 14.4 Amendment and waiver.** Changes must be in writing and signed by both Parties. A signature by email or through an e-signature platform counts. A Party's failure to enforce a term is not a waiver of it.
- 14.5 Assignment.** Contractor may not assign this Agreement or any Work Order. Company may assign this Agreement to a successor to substantially all of its business, on written notice.

- 14.6 Severability, counterparts and electronic signature.** If a court finds a term unenforceable, the court will limit it to the minimum extent needed and the rest of this Agreement stays in effect. This Agreement and any document signed under it may be signed in counterparts and electronically. An electronic or scanned signature has the same effect as an original.
- 14.7 Headings and independent advice.** Headings are for convenience only and do not affect interpretation. Each Party has had the opportunity to obtain independent legal advice before signing.

Signatures

Each Party signs below to agree to these terms. An electronic signature has the same effect as an original.

Company	Contractor
Signature: _____	Signature: _____
Name: Daniel Cooke	Name: [Contractor name]
Title: Founder	Title: [Title, or Owner]
Email: hello@luwahtechnologies.com	Email: [Contractor email]
Date:	Date:
Notice address: [Company notice address]	Notice address: [Contractor notice address]

Exhibit A: Work Order

*One Work Order per assignment. Every Work Order incorporates the Independent Contractor Agreement.
 Work starts only after both Parties sign.*

Work Order No.	[WO-YYYY-NN]
Contractor	[Contractor legal name]
Agreement reference	[ICA-YYYY-NN dated Month DD, YYYY]
Client and project	[Client name and project, or Internal]
Company SOW reference	[SOW-YYYY-NN, or None]
Start Date	[Month DD, YYYY]
End Date	[Month DD, YYYY]
Named personnel	[Contractor personnel permitted to perform the Services, or Contractor only]

1. Services

[What Contractor will do, on which systems, and what it will not do.]

2. Deliverables and Acceptance Criteria

No.	Deliverable	Acceptance criteria	Due date

3. Compensation

Basis	Rate or amount (USD)	Not-to-exceed (USD)	Invoicing
[Hourly, 15-minute increments]	[Rate per hour]	[Cap for this Work Order]	[Monthly, Net 30]
[Fixed per Deliverable]	[Amount per Deliverable]	[Total]	[On acceptance, Net 30]

4. Access to Be Granted

System	Access level	Granted by	Revoked on
			End Date
			End Date

5. Client Terms and Security Requirements

State every term the Client's agreement with Company imposes on this work: data handling, regulated data, approval process for production changes, permitted tools, and insurance.

- **[Client term]**
- **[Approval process for production changes]**
- **[Permitted AI tools, or None]**
- **[Required insurance, or None]**

Signatures

Each Party signs below to agree to these terms. An electronic signature has the same effect as an original.

Company	Contractor
Signature: _____	Signature: _____
Name: Daniel Cooke	Name: [Contractor name]
Title: Founder	Title: [Title, or Owner]
Email: hello@luwahtechologies.com	Email: [Contractor email]
Date:	Date:

Exhibit B: Contractor Pre-Existing IP

List every item of Contractor Pre-Existing IP that may be incorporated into Work Product. Anything not listed here or approved in a Work Order may not be incorporated. If nothing applies, write NONE in the first row.

Item	Description	Where it will be used	License
[Item, or NONE]			Section 5.5
			Section 5.5